

3. S-PR-0011676 In Re the Estate of Gaines, Roberta Lyn

Appearance is required for hearing on petition for final distribution.

The court cannot determine that petitioner has notice that the hearing date was moved from July 10 to July 13 at the direction of the presiding judge. The only notification of the change was returned to the court as undeliverable on May 26, 2026.

4. S-PR-0011823 In Re the 2000 Dagenbach Fam Liv Trust

Appearance is required for continued hearing on petition suspend and remove trustee, appoint successor, compel account of trustee and of agent, instruct trustee and agent, and to surcharge trustee.

5. S-PR-0012062 In Re the Estate of Trocha, Robert John

Appearances of personal representative Caylin Trocha and of counsel are required for continued status hearing re estate / reserved hearing for final distribution.

Missing petition for final distribution and notice of hearing.

Note: failure to timely close the estate is grounds for removal of the administrator. Failure to timely close the estate is also grounds to reduce or disallow all personal representative and counsel fees. Prob.C. §§ 12204–12205.

6. S-PR-0012652 In Re the Estate of Plympton, James Timothy Jr.

It is recommended the petition for final distribution and instructions be denied, as follows.

Petitioner incorrectly calculates personal representative and attorney fees. Disposition of estate vehicles by repossession does not result in a total loss to the estate. The repossessing creditor credits each automobile indebtedness account with the proceeds of the repossession sale, resulting in either a gain or loss on sale depending on the amount of proceeds. Where repossessing creditor neither claims a deficiency amount or refunds surplus proceeds, the repossession is scheduled in an account as a no-gain / no-loss disposition for the full asset value. Personal representative and attorney fees should be recalculated after this account error is resolved.

Extraordinary attorney fees are not supported by a sufficient C.R.C. 7.702 declaration. Counsel's declaration does not include any of the showing required by C.R.C. 7.702.

The estate includes insufficient cash to pay personal representative and attorney fees as requested. Clarification or revision is needed; the court will not ordinarily award fees where there is no ready means to pay them.